



**Zimnat Lion Insurance Company
Limited trading as Zimnat General
Insurance**

Auto Fleet Policy

Contents:

	Page
Preamble and Operative Clause	2
Policy schedule	3
Section I. (Loss or damage to motor vehicle)	4
Section II. (Liability to Third Parties)	5
Section III. (Other extensions and conditions)	5-8
General Conditions	9-11
General Exceptions	11
Other Extensions	12-13

PREAMBLE AND OPERATIVE CLAUSE

Whereas the Policyholder (hereinafter called the Insured) named in the Schedule has applied to Zimnat Lion Insurance Company Limited trading as Zimnat General Insurance (hereinafter called the Company) for the insurance herein contained, the Company agrees subject to any proposal or other information supplied by or on behalf of the Insured disclosing all facts and circumstances known to the Insured that are material to the assessment of risk insured hereby and forming the basis of this insurance to grant such insurance to the Insured subject to the terms, conditions, provisos, and exclusions set out in this Policy or as contained in any endorsement that may be issued.

Notwithstanding anything to the contrary set out in the Policy or any Section thereof the Company's agreement to insure and indemnify the Policyholder is conditional upon the payment by or on behalf of the Insured and the receipt thereof by or on behalf of the Company. Premium is payable on or before the inception date or renewal date as the case may be and the Company shall not be liable for any claims arising under this Policy prior to receipt of the premium. The Company shall not be obliged to accept premium tendered to it or to any intermediary after such date, but may do so upon such terms as it in its sole discretion may determine.

In witness whereof this Policy has been signed on this _____

SIGNED FOR AND ON BEHALF OF THE COMPANY

.....
**ZIMNAT LION INSURANCE COMPANY LIMITED TRADING AS ZIMNAT GENERAL
INSURANCE**

STAMP DUTY ON THIS POLICY HAS BEEN PAID IN ACCORDANCE WITH THE STAMP DUTIES ACT

FLEET AUTO POLICY

SECTION I. LOSS OF OR DAMAGE TO VEHICLE

The Company will indemnify the Insured against loss of or damage to any Vehicle described in the Schedule hereto and/or its accessories and spare parts whilst thereon.

EXCEPTIONS

The Company shall not be liable to pay for:-

- (a) Consequential loss arising in any way whatever depreciation, wear and tear, mechanical or electrical breakdown failures or breakages.
- (b) Damage to tyres by application of brakes or by road punctures cuts or bursts.
- (c) Damage to springs/shock absorbers or the suspension due to inequalities of the road or other surface or to impact with such inequalities.
- (d) Detention, confiscation, or requisition by customs or other officials or authorities.
- (e) Depreciation in the value following repairs.

The Company may at its own option repair, reinstate or replace such vehicle or any part thereof and/or its accessories and spare parts or may pay in cash the amount of the loss or damage **not exceeding the reasonable market value or insured value which ever lesser** of such vehicle and/or its accessories and/or spare parts at the time of such loss or damage. **The Insured's estimated value as stated in the Schedule hereto shall be the maximum amount payable by the Company in respect of any claim for such loss or damage.**

IT IS UNDERSTOOD AND AGREED that in the event of loss or damage to the Motor Car / Vehicle / Motor Cycle or Trailer and / or its accessories necessitating the supply of a part not obtainable from stocks held in the country in which the Motor Car / Vehicle / Motor Cycle or Trailer is held for repair or in the event of the Company exercising the option specified to pay in cash the amount of the loss or damage the liability of the Company in respect of any such part shall be limited to:

- (a) (i) the price quoted in the latest catalogue or price list issued by the Manufacturer or his Agents for the country in which the Motor Car / Vehicle / Motor Cycle or Trailer is held for repair or,
(ii) if no such catalogue or price list exists the price last obtaining at the Manufacturer's Works plus the reasonable cost of transport otherwise than by air to the country in which the Motor Car / Vehicle / Motor Cycle or Trailer is held for repair and the amount of the relative import duty.
- (b) The reasonable cost of fitting such part.

CONDITION OF AVERAGE

1. The onus shall be upon the Insured to keep the insured value of every vehicle level with market value at all times and shall give due regard to any features that would increase the value above that of a standard model.
2. If the market value of any vehicle shall at the time of any loss or damage be more than **twenty percent** greater than the insured value (plus the additional sum resulting from the escalator clause, if applicable to this policy) the Insured shall be considered as being his own insurer for the difference between the market value and the insured value and shall bear a rateable proportion of the loss accordingly.
3. If the estimated repair costs exceed 70% (Seventy percent) of the sum insured at the time of the loss or damage, this condition will not apply. In which event the maximum liability of the Company shall be the insured value (plus the additional sum resulting from the escalator clause, if applicable to this policy) and the damaged vehicle will become the property of the Company. However, the insured may be given the option of retaining the damaged vehicle on payment to the Company of 30% of insured value or the actual value of the salvage as determined by the Company whichever is higher.
4. In determining the market value of any vehicle the Company shall be guided by the Motor Trade and any other reliable indicators of what a well-informed buyer would pay a well-informed seller. The Insured's vehicles shall be assumed to be standard models without any features that would affect the market value unless the Insured shall have informed the Company of any such features.

RECOVERY AND REDELIVERY

If such Vehicle is disabled by reason of any loss or damage insured under this Section the Company will pay the reasonable cost of protection and removal to the nearest repairers and the Company will also pay the reasonable cost of delivery to the Insured after repair of such loss or damage not exceeding the reasonable cost of transport to the address of the Insured.

PROVIDED that the Company's liability by virtue of this Extension shall be limited **to the sum stated in the schedule** in respect of any one claim or series of claims arising out of any one accident.

SECTION II. LIABILITY TO THIRD PARTIES

The Company will indemnify the Insured in the event of an accident caused by or through or in connection with any vehicle described in the schedule hereto including the loading and/or unloading of such vehicle against all sums including Claimant's costs and expenses which the Insured shall become legally liable to pay in respect of-

- (i) Death of or bodily injury to any person
- (ii) Damage to property

The Company will pay all costs and expenses incurred with its written consent.

In terms of and subject to the limitations of and for the purpose of this Section the Company will indemnify any person who is driving such vehicle on the Insured's order or with his permission provided-

- (a) That such person is not entitled to indemnity under any other policy
- (b) That such person shall as though he were the Insured observe, fulfil and be subject to the terms, exceptions and conditions of the policy insofar as they can apply.
- (c) That such person has not been refused any Motor Vehicle Insurance or continuance thereof by any Insurance Company or Underwriter.

Exceptions

Provided always that the Company shall not be liable under this Section in respect of-

- (a) In the case of the loading and/or unloading of the vehicle death injury or damage caused or arising beyond the limits of any carriage way or thoroughfare in connection with the bringing of the load to such vehicle for loading thereon or the taking away of the load from such vehicle after unloading therefrom.
- (b) Death of or injury to any person in the employment of the Insured arising out of and in the course of such employment.
- (c) Death of or injury to any person being carried in or upon or entering or getting onto or alighting from such vehicle at the time of the occurrence of the event out of which any claim arises.
- (d) Death of or injury to any person being a member of the same household or family as the Insured or driver of the vehicle.
- (e) Damage to property belonging to or held in trust by or in the custody or control of the Insured or being conveyed by or loaded onto or unloaded from such vehicle.
- (f) Damage to any viaduct or weighbridge or to any road and/or anything beneath by vibration or by the weight of such vehicle or load carried by such vehicle.

Provided always that indemnity referred to Section II shall not apply to:

- (i) compensation for damages in respect of judgments not in the first instance delivered by or obtained from a court of competent jurisdiction in Zimbabwe.
- (ii) costs and expenses of litigation which are NOT incurred in and recoverable in Zimbabwe
- (iii) fines, penalties, punitive, exemplary or vindictive damages.

Provided further that the Company's liability under this Section in respect of

- Third Party Property Damage shall be limited to **the sum stated in the schedule** including legal fees and expenses incurred with the company's written consent and associated Claimant's costs and expenses.
- (ii) Death and Bodily Injury – limited **to the sum stated in the schedule** including legal fees and expenses incurred with the company's written consent and associated claimants costs and expenses.

in respect of any one accident or series of accidents arising out of any one event or occurrence unless stated in the Schedule or subsequent endorsements.

Exclusion of Third Party Working Risks

The Company shall be under no liability under Section II of this Policy in respect of liability incurred arising out of the operation or demonstration as a tool of such Vehicle or plant forming part of such Vehicle or attached thereto.

SECTION III. – OTHER EXTENSIONS AND PROVISIONS

1. TOWING EXTENSION

This Policy shall be operative while any vehicle described in the Schedule is being used for the purpose of towing any vehicle or trailer and the Company will indemnify the Insured in terms of Section II of the Policy in respect of liability in connection with the towed vehicle or trailer.

Provided that always: -

- (a) Such vehicle or trailer is not towed for reward
- (b) The Company will not be liable by reason of this Section of this Policy in respect of damage to the towed vehicle or trailer or property being conveyed by such vehicle or trailer.

2. APPLICATIONS OF LIMITS OF INDEMNITY

In the event of any accident involving indemnity to more than one person any limitation by the terms of this Policy and/or of any endorsement hereon of the amount of any indemnity shall apply to the aggregate amount of indemnity to all persons indemnified and such indemnity shall apply in priority to the Insured.

3. FIRST AMOUNT PAYABLE

In respect of each and every occurrence giving rise to a claim under Section 1 notwithstanding anything to the contrary contained in such section the Insured shall be responsible for the "FIRST AMOUNT PAYABLE" as specified in the Schedule to the Policy of any expenditure under Section I of this policy (or for any expenditure which is equal to or less than the "first amount payable" for which provision is made under such Sections (including any payment in respect of costs expenses and fees) and of any expenditure by the Company in the exercise of its discretion under Section I of this Policy. If the expenditure incurred by the Company shall include the "FIRST AMOUNT PAYABLE" for which the Insured is responsible such amount shall be paid by the Insured to the Company forthwith.

Definition of Occurrence

For the purpose of this Provision the expression "occurrence" shall mean an occurrence or series of occurrences arising out of one cause in connection with any one Vehicle in respect of which indemnity is provided by the Policy.

4. DEFINITION OF COVER

- (a) **Comprehensive** (designated by "COMP" in the schedule)
Sections I, II and III of this policy apply without amendment unless stated to the contrary in the schedule.
- (b) **Full Third Party Fire and Theft** (designated by "FTPF&TH" in the schedule)
The liability of the company under Section I of this policy is restricted solely to loss or damage resulting from fire, self-ignition, lightning or explosion or by theft or any attempt thereat and the No-claim rebate provisions are cancelled.
- (c) **Full Third Party Only** (designated by "FTP" in the schedule)
Section I and the NO-Claim Rebate provisions of this policy are cancelled
- (d) **Fire and Theft Only (Laid up)** (designated by "F&T" in the schedule)
The vehicle is laid up and out of use and the cover under this policy is suspended save only in respect of loss of or damage to the vehicle by fire, self-ignition, lightning or explosion or by theft or any attempt thereat.

5. DEFINITION OF VEHICLE

Vehicle shall mean

- (a) Private type motor cars (including station wagons, safari vans, estate cars, pick-ups and the like) designed to seat not more than 8 (eight) persons including the driver or designed for the transport of goods not exceeding 1 ½ (one and a half) tons.
- (b) Commercial vehicles and special type vehicles as described in the Schedule.
- (c) Motor cycles (including motor scooters and 3-wheeled vehicles). warranted that a helmet is always worn when riding
- (d) Buses (including any vehicle used for business purposes and designed to seat more than 8 (eight) persons, including the driver) (non fare paying)

Limit

indemnity for
loss or
damage as stated

6. PRIVATE TYPE MOTOR CAR EXTENSIONS

(Applicable only to Definition (a) vehicles)

- (a) **Passenger Liability**
Exception (c) of Section II of this Policy is deemed to be deleted and the company's liability shall be limited to -
- to the sum stated in the schedule in respect of any one accident or series of accidents arising out of any one event or occurrence unless stated in the Schedule or subsequent endorsements, and
- to the sum stated in the schedule per passenger,
including legal fees and expenses incurred with the company's written consent and associated Claimant's costs and expenses.
Provided that in respect of any open, partly open or convertible type vehicle which for the purpose of this restriction shall mean a vehicle or any part thereof where the driver and passenger seating area is not permanently protected by a hard roof and hard doors the Company shall not be liable in respect of death of or bodily injury to any person being carried in or upon or entering or getting onto or alighting from such vehicle except for any part of such vehicle as is permanently protected by a hard roof and hard doors and except insofar as may be specifically agreed and endorsed upon this Policy.
Provided further that in the event of any accident occurring while the Vehicle is carrying more than the number of passengers or persons it is licensed to carry in terms of any Act or Ordinance the indemnity granted by this Extension shall be forfeited.
- (b) **Loading and Unloading**
Exception (a) of Section II of this Policy is deemed to be deleted.
- (c) **Legal fees**
The Company will pay legal Fees for representation at any legal inquest or Fatal inquiry in respect of any death which may be subject of indemnity under Section II of this Policy or for defending in any Court of law any criminal proceedings in respect of any act causing or relating to any event which may be subject of indemnity under this Section provided always that the Company shall be entitled to nominate its own legal practitioner, but where such nomination is not made the Company's liability for such fees shall be limited to the sum stated in the schedule in respect of any one accident.

Provided always that the Company shall not be liable to pay legal fees in respect of any charge which includes driving whilst under the influence of intoxicating liquor or drugs or driving with a prohibited concentration of alcohol or drugs.

- (d) **Medical Expenses**
If the Insured or his driver or any occupant of any vehicle insured hereunder shall in direct connection with such vehicle sustain any bodily injury by violent accidental external and visible means the Company will pay to the Insured the medical expenses in connection with such injury up to the sum stated in the schedule in respect of each person injured but not more than the sum stated in the schedule in total for all occupants injured.

- (e) **Contingent Liability**
The Indemnity granted under Section II of this Policy shall include claims made against the Insured in the event of an accident caused by or through or in connection with any Motor Vehicle not the Property of nor provided by the Insured whilst being used on the business or occupation of the Insured as described in the Schedule by any employee of the Insured provided always that this extension shall not indemnify the Insured in respect of loss of or damage to such vehicle.

For the purpose of this Extension only-

- (i) Exception (a) and (c) of Section II of this Policy are deleted entirely subject to the limits stated in Section II and Part (a) of this paragraph.
(ii) If at any time of the occurrence of any accident giving rise to a claim under this Section there is another existing insurance covering the same loss damage or liability the Company shall not be liable to make any payment under this Section.

Subject otherwise to the terms exceptions and conditions of the Policy.

- (f) **Glass Clause**
Any claim for the cost of reinstating any glass forming a portion of either the vehicle described in the Schedule hereto or of any accessory permanently attached thereto as a result of contact with flying stones or any other object will be met without deduction of that portion of the "First Amount Payable " for which the Insured is responsible in terms of the "First Amount Payable" section of the policy for which no discount of premium has been allowed but subject to a contribution by the Insured of an amount equal to **Thirty-Three Percent of the cost of re-instatement.**

Any payment under this paragraph shall not constitute a claim within the meaning of the "No-Claim Rebate" provisions of the Policy. Provided that this concession shall not apply to the breakage of glass arising from an incident in which other damage is sustained to such Vehicle. Nothing herein contained shall be held to vary, alter, waive or extend any of the Agreements, Conditions, Declarations, Exclusions,

Limitations or Terms of the Policy except as herein above set forth.

7. **EXTENSION OF TERRITORIAL LIMITS**

It is hereby declared and agreed that notwithstanding anything contained herein to the contrary this policy shall be extended to indemnify the Insured whilst the vehicle/s is/are temporarily in **any of the countries that are part of the Southern African Development Community (SADC) in the African continent but excluding:**

Democratic Republic of Congo (DRC),

It is further declared and agreed that the Insured shall be responsible for the First Amount **as stated on the schedule** in respect of each and every claim resulting from Theft and/or Hijack risks in the **Republic of South Africa (RSA)** in terms of the Amount to be borne by the Insured pertaining to the policy.

Temporary shall mean for the purpose of this clause, not more than **45 (Forty-five) Days** outside Zimbabwe during any one trip or not more than **90 (Ninety) Days** in aggregate outside Zimbabwe during any one period of insurance.

Including cover whilst the vehicle is in transit by sea between any ports in the aforementioned territories and loading and unloading incidental to such transit.

Provided always that this policy shall not be deemed to be a policy of insurance in compliance with the provisions of any compulsory insurance legislation in the territories. Further the insured will be responsible for repatriation of the vehicle into Zimbabwe including all costs incurred up to point of entry into Zimbabwe.

8. **DESCRIPTION OF USE**

Use for Social Domestic Pleasure Business and Professional Purposes.

Excluding

Any accident loss damage and/or liability caused by or to the vehicle whilst being used for any purpose in connection with the Motor Trade which use shall include any operation of the vehicle while in the Custody or control of a Member of the Motor Trade for the purposes of overhaul upkeep or repair or driving instruction of paying pupils or whilst let out on hire or used as a taxi or plying for public, private hire or whilst racing or pace-making or in any speed contest or any trial or being driven in a match for a wager or whilst being used for the carrying of fare-paying passengers or of guests of an Hotel Private Hotel or Boarding House if the Insured is the keeper of such Hotel Private Hotel or Boarding House or whilst being used for carrying explosives.

Provided that notwithstanding anything to the contrary herein contained the insurance granted by this Policy in respect of the vehicle described in the Schedule shall be operative while such vehicle is in the custody or control of and is being used by a Member of the Motor Trade for the purpose of overhaul, upkeep or repair, but only insofar as it indemnifies the within-named Insured against loss or damage and/or liability.

9. ROAD TRAFFIC ACT [CHAPTER 13:11]

It is hereby declared and agreed that in respect of the use of the motor vehicle on any road in Zimbabwe this policy shall, subject to the following conditions be a policy for all purposes of the Road Traffic Act,[Chapter 13:11] as amended (hereinafter referred to as "the Act").

Conditions

1. In the event of the Company being required to make any payment under this policy in respect of the liability of any person which, but for the provisions of the legislation or any amendment thereof, it would not have been required to make, any sum so paid shall be recoverable by the Company from that person.
2. Nothing contained in this extension shall extend the liability of the Company beyond the minimum requirements of the legislation or any amendments thereof.
3. Any limitation of liability stated in this Policy as to the amount or amounts which may become payable in respect of the death or injury to any person or persons shall not apply to the indemnity which is by law required to be provided in terms of the legislation and which is provided by reason of this extension.
4. All terms, exceptions and conditions of the policy, provided they do not conflict with the requirements of the legislation shall apply to this extension.

10. TOTAL LOSS

In the event of any claim on any vehicle described in the Schedule being settled on a total loss basis all insurance in respect of such vehicle shall cease from the date of settlement.

GENERAL CONDITIONS

1. Conditions Precedent

The due observance and fulfillment of the terms conditions and endorsements of this Policy by the Insured in so far as they relate to anything to be done or complied with by the Insured shall be conditions precedent to any liability of the Company to make any payment under this Policy. No waiver of any of the terms conditions and endorsements of this Policy shall be valid unless made in writing and signed by a duly authorized officer of the Company.

2. Claims

(a) On the happening of any loss damage destruction injury or liability (hereinafter referred to in this condition as the occurrence) which may result in a claim under this Policy the Insured shall at his own expense:

- (i) forthwith notify the Company of any claim within seven days.
- (ii) immediately inform the police of any claim involving theft dishonesty fraud or loss of property and take all practicable steps to discover the guilty party and to recover the stolen or lost property;
- (iii) within 30 days after the occurrence (or such further time as the Company may in writing allow) submit to the Company full details in writing of any claim together with particulars of any other insurances covering such occurrence hereby insured;
- (iv) give to the Company such proofs information and sworn declarations as the Company may require and forward to the Company immediately any notice of claim or any communication whatsoever writ summons or other legal process issued or commenced against the Insured in connection with the occurrence;
- (v) co-operate with the Company or its nominees in minimizing the effects of the occurrence.

(b) No claim under this Policy shall be payable:

- (i) unless the terms of this condition have been complied with;
- (ii) if the Insured makes any admission statement promise payment or indemnity without the prior written consent of the Company, which shall be entitled if it so desires to take over and conduct in the name of the Insured the defence or settlement of any claim or to prosecute in his name for its own benefit any claim for indemnity or damages or otherwise and shall have full discretion in the conduct of any proceedings or in the settlement of any claim and the Insured shall give all such information and assistance as the Company may require;
- (iii) for any loss, destruction or damage after the expiry of 12 months from the happening of such loss, destruction or damage unless the claim is the subject of pending legal action or arbitration or is a claim under the Section of the Policy indemnifying the Insured against sums which the Insured may become legally liable to pay as compensation in respect of bodily injury and/or loss or damage to property.
- (iv) if the Insured authorized repairs on any vehicle subject to a claim under the Policy without prior written consent by the Company.

3. Fraud or Wilful Act

If any claim under this Policy:

- (i) be in any respect fraudulent or if any fraudulent means or devices be used by the Insured or anyone acting on his behalf to obtain any benefit under this Policy;
- (ii) be in respect of any loss damage destruction injury or liability by the willful act of or with the connivance of the Insured;

all benefit under this Policy shall be forfeited and the policy voided.

4. Arbitration

If any difference arises as to the amount of any loss or damage to be paid under this Policy such difference shall independently of all other questions be referred to the decision of an Arbitrator to be appointed in writing by the parties in difference or if they cannot agree upon a single Arbitrator to the decision of two disinterested persons as Arbitrators of whom one shall be appointed in writing by each of the parties within two calendar months after having been required so to do in writing by the other party. In case either party shall refuse or fail to appoint an Arbitrator within two calendar months after receipt of notice in writing requiring an appointment the other party shall be at liberty to appoint a sole Arbitrator and in case of disagreement between the Arbitrators the difference shall be referred to the decision of an Umpire who shall have been appointed by them in writing before entering on the reference and who shall sit with the Arbitrators and preside at their meetings. The death of any party shall not revoke or affect the authority or powers of the Arbitrator or Arbitrators or Umpire respectively and in the event of the death of an Arbitrator or Umpire another shall in each case be appointed in his stead by the party or Arbitrators (as the case may be) by whom the Arbitrator or Umpire so dying was appointed. The cost of the reference and of the award shall be in the discretion of the Arbitrator Arbitrators or Umpire making the award. And it is hereby expressly stipulated and declared that it shall be a condition precedent to any rights of action or suit upon this Policy that the award by such Arbitrator Arbitrators or Umpire of the amount of the loss or damage if disputed shall be first obtained.

5. Forfeiture of claim

In the event of the Company disclaiming liability in respect of any claim and an action or suit be not commenced within three months after such disclaimer or (in case of an arbitration taking place in pursuance of Condition 4 of this Policy) within three months after the Arbitrator or Arbitrators or Umpire shall have made their award all benefit under this Policy in respect of such claim shall be forfeited.

6. Company's Rights after an Event

At any time after the happening of any event giving rise to a claim or series of claims under Section II of this Policy the Company may pay to the Insured the full amount of the Company's Liability under that Section and relinquish the conduct of any defence settlement or proceedings and the Company shall not be responsible for any damage alleged action or omission of the Company in connection with such defence settlement or proceedings or as a result of the Company relinquishing such conduct; nor shall the Company be liable for any costs or expenses whatsoever incurred by the Insured or any claimant or other person after the Company shall have relinquished such conduct.

7. Rights Against Third Parties

The Insured shall at the expense of the Company do and concur in doing and permit to be done all such acts and things as may be necessary or reasonably required by the Company for the purpose of enforcing any rights and remedies or of obtaining relief or indemnity from other parties to which the Company shall be or would become entitled or subrogated upon its paying for or making good any loss or damage under this Policy whether such acts and things shall be or become necessary or required before or after his indemnification by the Company.

8. Prevention of Loss

The Insured shall take all reasonable steps to safeguard any vehicle described in the schedule hereto from loss or damage and to maintain it in efficient condition and the Company shall have at all times free and full access to examine such vehicle or any part thereof or any driver or employee of the Insured. In the event of any accident or breakdown such vehicle shall not be left unattended without proper precautions being taken to prevent further damage or loss and if such vehicle be driven before the necessary repairs are effected any extension of the damage or further damage to such vehicle shall be entirely at the Insured's own risk

9. **Misdescription Misrepresentation Omission**

This Policy or any particular Section shall be voidable in the event of:

- (a) any material misdescription of any property insured or of any building or place in which such property is contained;
- (b) any misrepresentation of material fact;
- (c) any omission to disclose material fact.

such as would affect the Company's assessment of the risk.

10. **Driver's record**

If during the currency of this Policy any driver's licence in favour of the Insured or his Authorized Driver be endorsed suspended or cancelled or if he or they be charged or convicted of culpable homicide, negligent or reckless driving, driving without due care and attention, drunken driving or driving with a prohibited concentration of alcohol or drugs in his/their blood notification shall be sent in writing to the Company immediately he has knowledge of such fact.

11. **Breach of Condition or Warranty**

This Policy shall be voidable in the event of the breach of any condition or warranty.

12. **Other Insurances**

If at the time any claim arises under this Policy there is any other existing insurance covering the same loss damage or liability the Company shall not be liable to pay or contribute more than its rateable proportion of any loss damage compensation costs or expenses.

PROVIDED ALWAYS, that nothing in this Condition shall impose on the Company any liability from which but for this Condition it would be relieved under Paragraph (a) of Section II of this Policy.

13. **Limits of Liability**

Unless otherwise specifically stated in this Policy the liability of the Company in respect of each item insured shall be limited to the amount or amounts stated in the Schedule under Sum Insured, Limit of Liability, Capital Sum or Estimated Value as the case may be.

14. **Currency**

All sums of money mentioned in this Policy are in the currency of United States Dollars

15. **Cancellation of Policy**

The Company may cancel this Policy by sending 30 days written notice to the Insured at his last known address and in such event

will return to the Insured the

premium less the pro rata portion thereof for the period the Policy has been in force or the Policy may be cancelled at any time by

the Insured on written notice and (provided no claim has arisen during the then current period of insurance) the Insured shall be

entitled to a return of the premium less premium at the Company's short period rates for the time the Policy has been in force.

16. **Rights against the Company to any person other than the Insured**

Unless otherwise expressly stated by endorsement hereon nothing contained herein shall give any rights against the Company to any person other than the Insured. Further the Company shall not be bound by any passing of the interest of the Insured otherwise than by death or operation of law unless and until the Company shall by endorsement hereon declare the insurance to be continued. The extension of the Company's liability in respect of any person other than the Insured shall give no right of claim hereunder to such person the intention being that the Insured shall in all cases claim for and on behalf of such person and the receipt of the Insured shall in any case absolutely discharge the Company's liability hereunder.

17. **Declaration adjustment (if stated in the Schedule to be applicable)**

The Insured shall submit to the Company **at the end of each six months during the period of Insurance** a declaration of the total number of Vehicles insured under this Policy, owned, hired or leased at such expiry. Further the Insured shall provide valuations of such vehicles based on reasonable market value. The Company shall upon receipt of this declaration make a premium adjustment of 50% of the annual rate per vehicle applied to the difference in the number of vehicles at inception or renewal and the number declared.

18. **Final declaration adjustment (at the end of the insurance period)**

Further, the Insured shall submit to the Company **at the end of the period of Insurance** a declaration of the total number of Vehicles insured under this Policy, owned, hired or leased at such expiry. Further the Insured shall provide valuations of such vehicles based on reasonable market value. The Company shall upon receipt of this declaration make a premium adjustment of 50% of the annual rate per vehicle applied to the difference in the number of vehicles at inception or renewal and the number declared. **The premium adjustment at the end of the insurance period shall be the difference between the 1st and Final declaration adjustment premiums.**

19. **Hired vehicles during the period of Insurance**

Further, it is declared and agreed that the Company (Insurer) shall be notified immediately during the period of Insurance where

any vehicle is hired by the Insured for a period exceeding 30 (Thirty) days or where there are more than 2 (Two) vehicles hired at

any one time. The Company may upon receipt of this declaration make a premium adjustment based on the number of days such vehicles are hired.

Nothing herein contained shall be held to vary, alter, waive or extend any of the Agreements, Conditions, Declarations, Exclusions, Limitations or Terms of the Policy except as hereinabove set forth.

GENERAL EXCEPTIONS

This Policy does not cover:

1. War, Riot Strike Risks

Loss or damage directly or indirectly occasioned by or through or in consequence of:

- (a) War, invasion, act of foreign enemy, hostilities or warlike operations (whether war be declared or not), civil war; mutiny, riot, strike, civil commotion, military or popular uprising, insurrection, rebellion, revolution, military or usurped power, martial law or state of siege or any of the events or causes which determine the proclamation or maintenance of martial law or state of siege or coup d'etat;
- (b) Any act (whether on behalf of any organisation, body or person, or group of persons) calculated or directed to overthrow or influence any Government de jure or de facto or any provincial or local authority with force, or by means of fear, terrorism or violence;
- (c) Any act which is calculated or directed to further any political aim, objective or cause or in protest against any Government de jure or de facto, or any provincial or local authority;
- (d) Any armed conflict between regions or political or religious or ethnic or tribal factions within Zimbabwe;
- (e) Any attempt to perform any act referred to in the immediately preceding paragraphs;
- (f) Any act of any lawfully established authority in controlling, preventing, suppressing or in any other way dealing with any occurrence referred to in clause (a), (b), (c), (d) or (e) above;
- (g) Abandonment and/or dispossession of property insured resulting from seizure, confiscation, commandeering, restraint, detention, requisition, appropriation or nationalisation by any lawfully constituted authority or by order of any Government de jure or de facto;
- (h) abandonment and/or legal or illegal occupation of premises for a period of more than 48 consecutive hours by any person or group of persons except in the course of labour disturbances, strike or lockout if insured by this policy;
- (i) Any acts of terrorism committed by any body or person or any group of persons or by any Government de jure or de facto.

In any action suit or other proceedings where the Company alleges that by reason of the provisions of this exception any event, loss, destruction or damage is not covered by this policy the burden of proving that such event, loss, destruction or damage is covered shall be upon the Insured.

2. Nuclear Risks

Loss destruction or damage or any consequential loss or any legal liability of whatever nature directly or indirectly caused by or arising from or in consequence of or contributed to by nuclear weapons material or by ionizing radiations or contamination by radioactivity from any nuclear fuel or from any nuclear waste or from the combustion of nuclear fuel.

For the purpose of this exception only combustion shall include any self-sustaining process of nuclear fission.

3. Any accident injury loss damage and/or liability caused sustained or incurred outside Zimbabwe.

4. Any accident injury loss damage and/or liability cause sustained or incurred while any Vehicle in respect of or in connection with

which insurance is granted under this Policy is

- (a) Being used otherwise than in accordance with the Description of Use clause.
- (b) Being driven by the Insured or by any other Person with the general knowledge and consent of the Insured unless duly and fully licensed to drive such vehicle in terms of the legislation applying to any territory within the territorial limits to which this policy applies provided that if such a licence be subject to renewal and such person does not hold a licence by virtue only of having omitted to renew such licence when in all respects qualified to obtain such renewal this exception shall not apply provided that this exception shall not apply whilst the Insured or any such person is driving such vehicle whilst learning to drive if at such time he is complying with the laws and regulations in force relating to learners.
- (c.) Being driven by the Insured or by any person with the general knowledge and consent of the Insured while under the influence of intoxicating liquor or drugs or while the percentage of alcohol in the driver's blood is in excess of 80 milligrams of the alcohol per 100 millimeters of blood.

5. Any claim arising out of any contractual liability.

FLEET

EXTENSIONS / AMENDMENTS TO THE POLICY WHICH ARE INCLUDED ONLY IF STATED TO BE INCLUDED UNDER THE FOLLOWING ENDORSEMENT

It is hereby declared and agreed that the under-noted endorsements be incorporated in the within policy.

MEMO 1. NON- POLITICAL RIOT AND STRIKE

Subject to the terms, conditions and clauses contained herein the Insurers agree to indemnify the Insured against physical loss of or damage to the property insured directly related to or caused by or arising from one or more of the following defined events:

a) Riot and strike damage

- (i) The act of any person taking part together with others in any disturbance of the public peace (whether in connection with a labour disturbance, strike or lock-out or not) not being an occurrence mentioned in **General Exception 1** ;
- ii) the wilful act of any striker or locked-out worker done in furtherance of a strike or in resistance to a lock-out;
- iii) the act of any lawfully established authority in controlling, preventing, suppressing or in any other way dealing with any occurrence referred to in clauses (i) or (ii) above.

If the policy cover is stated in the schedule to be "third party" the words "accident injury loss damage" are deemed to be deleted.

SPECIFIC CONDITION - Cancellation

This insurance may at any time be cancelled by the Insurer by notice in writing to that effect sent to the Insured by registered post to the Insured's last known address and such cancellation shall take effect immediately such notice is sent out by the Insurer.

MEMO 2. LOADING AND UNLOADING

It is hereby declared and agreed that Exception (a) of Section II of the Policy is cancelled.

MEMO 3. CROSS LIABILITIES

It is hereby declared and agreed that each of the parties comprising the Insured indicated in the Schedule of this Policy shall be considered as a separate and distinct legal entity and the words "The Insured" wherever they appear in this policy shall be considered as applying to each party in the same manner as if a separate policy had been issued to each of the said parties.

Provided nevertheless that nothing in this endorsement shall increase the limit of the Company's liability in respect of any one accident or series of accidents as stated in the schedule of this Policy.

MEMO 4. UNSPECIFIED VEHICLE AUDIO EQUIPMENT AND/OR SYSTEMS, ACCESSORIES AND/OR SPARE PARTS

It is hereby declared and agreed that the limit of liability of the Company under Section 1 of this policy, in respect of vehicle audio equipment and/or systems and vehicle accessories and/or spare parts shall be limited **to the sum stated in the schedule for equipment not supplied by the manufacturers of the vehicle when new** in respect of any one claim arising out of any one accident or occurrence provided further that the Insured shall be responsible for the first amount **stated in the schedule** for each and every claim in terms of the First amount payable section pertaining to the policy. Provided that in the event of a claim, the insured shall submit proof of the type of radio that has been fitted in the said vehicle.

MEMO 5. SELF AUTHORISATION OF REPAIRS

It is hereby declared and agreed that the Insured may give instruction for repairs to be executed without the previous consent of the Company to the extent of but not exceeding **the sum stated in the schedule** over and above the first amount payable provided that a detailed estimate is first obtained and immediately forwarded to the Company.

MEMO 6. LIMIT ON TOWING FEES

It is hereby declared and agreed that the insured may instruct towing accident damaged vehicle to the nearest repairer, as provided under the policy, without prior consent of the company to the extent of but limited **to the sum stated in the schedule** It is further declared and agreed the Company will pay for the reasonable cost of towing incurred with a written consent of the company ,to the nearest repairer for each and every claim.

MEMO 7. LIMIT ON PASSENGER LIABILITY

It is hereby declared and agreed the limit of liability of the Company in respect of authorised or unauthorised passenger liability as provided under the policy shall be limited to **the sum stated in the schedule** Per Person and **to the sum stated in the schedule** in respect of any one event or occurrence.

MEMO 8. LIMIT ON BODILY INJURY AND DEATH LIABILITY

It is hereby declared and agreed that the limit of liability of the Company in respect of Bodily injury and Death liability as provided under the policy shall be limited to **the sum stated in the schedule** in respect of any one event or occurrence.

MEMO 9. ADDITIONAL THIRD PARTY PROPERTY DAMAGE

It is hereby declared and agreed that the limit of liability of the Company under section II (ii) of this policy shall be increased to **the sum stated in the schedule** in respect of any one event or occurrence.

MEMO 10. LIMIT ON MEDICAL EXPENSES

It is hereby declared and agreed that the limit of liability of the Company in respect of medical expenses as provided under the policy shall be limited to **the sum stated in the schedule** in respect of each person injured but not more than **to the sum stated in the schedule** in total for all occupants injured.

MEMO 11. LIMIT ON LEGAL EXPENSES

It is hereby declared and agreed that the limit of liability of the Company in respect of medical expenses as provided under the policy shall be limited to **the sum stated in the schedule** in respect of any one accident.

This agreement shall not be altered, modified or cancelled, except in the manner provided in the said insurance policy, while said policy is in force; that this is a valid and binding contract which they have the right to make and that the persons signing for them are duly authorized for the purpose.

Nothing herein contained shall be held to vary, alter, waive or extend any of the Agreements, Conditions, Declarations, Exclusions, Limitations or Terms of the Policy except as herein above set forth.